United States District Court
Northern District of California

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

SHANNON SMITH, et al.,

Defendants.

Case No. 26-cv-07504-LJC

ORDER REGARDING PAYMENT OF FILING FEE AND APPLICATION TO PROCEED IN FORMA PAUPERIS

Re: Dkt. No. 7

The Court previously ordered Plaintiff Brendan Newanforbi to file a copy of a state court decision and to file a supplemental application to proceed in forma pauperis (IFP) using this Court's form. ECF No. 7. Plaintiff filed the state court decision, and in lieu of the supplemental IFP application, paid the filing fee. ECF Nos. 8, 9. This Order confirms that no further action is necessary in response to that previous Order. Plaintiff's original IFP application, ECF No. 2, is DENIED AS MOOT.

The previous order also indicated that the Court would "determine whether case preclusion, issue preclusion, or any related doctrine might apply here" in light of the state court decision Plaintiff was directed to file. ECF No. 7 at 2. Had Plaintiff been granted leave to proceed IFP, the Court would have reviewed the sufficiency of his Complaint sua sponte pursuant to 28 U.S.C. § 1915(e)(2)(B), including with respect to issues of preclusion. Because Plaintiff has now effectively withdrawn his IFP application by paying the filing fee, however, the Court leaves any such argument for Defendants to raise if they see fit after they are served and appear. This Order should not be construed as implying any opinion by the Court as to whether such defenses might apply.

To proceed with this case, Plaintiff is directed to serve process on Defendants consistent

with Rule 4 of the Federal Rules of Civil Procedure.

IT IS SO ORDERED. Dated: August 26, 2026

LISA J. CISNEROS
United States Magistrate Judge

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